

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201502380	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Sunday, 03/15/2015 6:06 PM	Location of Incident: South West Corner Plainview Avenue and Beach 20 Street	18 Mo. SOL 9/15/2016	Precinct: 101
Date/Time CV Reported Mon, 03/30/2015 11:48 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 03/31/2015 12:19 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Dias	04654	950320	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Velotti	09432	949767	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Dias	Abuse: PO Matthew Dias damaged § 87(2)(b)'s property.	A . Substantiated
B . POM Matthew Dias	Force: PO Matthew Dias pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Matthew Dias	Off. Language: PO Matthew Dias made remarks to § 87(2)(b) based upon race.	C . Unsubstantiated
D . POM Matthew Dias	Force: PO Matthew Dias used pepper spray against § 87(2)(b)	D . Exonerated
E . POM Matthew Dias	Discourtesy: PO Matthew Dias spoke rudely to § 87(2)(b)	E . Unsubstantiated

Case Summary

On March 15, 2015, § 87(2)(b) § 87(2)(b) in Far Rockaway, New York. He was driving a fifteen passenger, five-row passenger van with tinted side and rear windows. § 87(2)(b) picked up eleven passengers on Mott Avenue and then ran a red light at the intersection of Mott Avenue and Beach 21st Street. PO Matthew Dias and PO Nicholas Velotti of the 101st Precinct observed the infraction from their RMP and conducted a vehicle stop. PO Dias issued § 87(2)(b) a summons. § 87(2)(b) subsequently continued on Mott Avenue and then turned South onto Beach 20th Street, running a second red light. He came to a stop at the at a stop sign at the intersection of Beach 20th Street and Plainview Avenue. PO Dias and PO Velotti's RMP pulled up behind him. PO Dias exited the vehicle and, as § 87(2)(b) pulled away from the intersection, PO Dias struck the rear passenger's side window of § 87(2)(b)'s vehicle with his baton, shattering it (**Allegation A**). § 87(2)(b) pulled the van over on Plainview Avenue. PO Dias approached the van's driver's side with his gun drawn and pointed it at § 87(2)(b) (**Allegation B**). He allegedly said, "Get your black ass out of the van" (**Allegation C**). § 87(2)(b) exited the van and PO Dias placed him in handcuffs. As PO Dias walked § 87(2)(b) to the RMP, parked behind the van, § 87(2)(b) a passenger in the van, approached PO Dias and § 87(2)(b) PO Dias sprayed § 87(2)(b) in the face with pepper spray (**Allegation D**). PO Dias placed § 87(2)(b) in the rear of the RMP, and § 87(2)(b) asked PO Dias if he was being arrested because he was black. PO Dias allegedly replied, "Don't put that racist shit on me" (**Allegation E**). § 87(2)(b) was transported to the 101st Precinct stationhouse for processing § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) a passenger in the van, recorded a video of the incident with her cell phone; § 87(2)(b)

Mediation, Civil, and Criminal Histories

This complaint was deemed unsuitable for mediation on the grounds that § 87(2)(b) was arrested and his vehicle sustained property damage. He planned to fight the charges in court § 87(2)(b) [§§ 87(2)(b)(3)&(4)] [§ 87(2)(c)]

On June 3, 2015 a request was sent to the Office of the Comptroller for any notice of claim filed by § 87(2)(b) As of the date of this report no response has been received.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (02. Board Review).
- One previous CCRB complaint has been filed against PO Dias (03. Board Review). In CCRB case # 201213830 it was alleged that PO Dias called a black individual a "stupid nigger." That allegation was unsubstantiated.

Potential Issues

§ 87(2)(b) a witness to the incident and the victim of PO Dias' use of pepper spray, contacted the undersigned investigator on April 15, 2015. He stated he would not appear at the CCRB to provide an in-person statement. On April 17, 2015 he provided a phone statement (04. Board Review) and agreed to meet with CCRB field team investigators to sign a verification

statement. On April 24 and 27, 2014, Inv. Sazonov attempted unsuccessfully to schedule a meeting with § 87(2)(b). On May 1, 2015 the undersigned investigator sent § 87(2)(b) a verification statement by mail. On May 6, 2015 the undersigned investigator reached § 87(2)(b) who scheduled a meeting with field team investigators on May 11, 2015. On May 11, 2015 Inv. Sazonov, Inv. Gutierrez, and Inv. O'Connor arrived at the agreed upon location at the scheduled time. However, § 87(2)(b) did not appear. The field team attempted unsuccessfully to contact § 87(2)(b) and left a voicemail. The undersigned also attempted to contact § 87(2)(b) on May 11, 2015 and left a voicemail. As of the date of this report § 87(2)(b) has not returned the calls and his verification statement has not been received.

Findings and Recommendations

Allegation A—Abuse of Authority: PO Matthew Dias damaged § 87(2)(b)'s property.

It is undisputed that PO Dias broke § 87(2)(b)'s van window with his baton.

PO Dias (05. Board Review) and PO Velotti (06. Board Review) testified that, after the first stop, PO Velotti was driving and activated the RMP's lights and sirens when he and PO Dias observed § 87(2)(b) run a second red light, fail to yield to pedestrians, and nearly cause an accident involving southbound traffic on Mott Avenue. PO Dias and PO Velotti maintained that they followed § 87(2)(b)'s van for three blocks with lights and sirens activated, and he did not stop. § 87(2)(b) (07. Board Review) maintained that he never saw the RMP's lights or heard its sirens.

PO Dias and PO Velotti testified further that when § 87(2)(b)'s van came to a stop at Plainview Avenue, PO Dias exited the RMP's passenger's side and approached the passenger's side of the van. PO Velotti lost sight of PO Dias. PO Dias testified that he attempted to open the passenger's side door, which was locked, and knocked on the window, which was closed. He maintained that § 87(2)(b) looked at him through the front passenger's side window and then looked away, whereas § 87(2)(b) testified that he never saw an officer approach the van.

PO Dias testified that § 87(2)(b)'s van suddenly accelerated forward and to the right, causing the passenger's side rear corner of the van to strike him in the left shoulder. This contact caused him to stumble backward before regaining his balance but did not cause any injury. PO Velotti testified that he witnessed the back right corner of the van make contact with PO Dias' left shoulder as it pulled away from the intersection.

PO Dias believed § 87(2)(b) was fleeing and resolved to damage the vehicle's exterior in order to mark it for future identification. He took out his baton, chased the van, and used the baton to shatter the rear passenger's side window. He maintained that he did not intentionally strike the window, but that it was nonetheless where his baton made contact. § 87(2)(b) heard the rear passenger's side window of his van shatter but did not see how it occurred. He heard an unidentified passenger say, "The cops broke the window."

In a phone conversation on April 9, 2015 § 87(2)(b) provided the undersigned investigator with the title of a video of the incident's aftermath, § 87(2)(b) (08. Board Review). In the video at 5:10, an unidentified individual said, "He gave him a ticket and said 'move off,' and then he kept following him. After the siren go off, he come out of the car, and the van was driving, and he took something from his waistband and he smashed the window."

At 0:24 in the same video, an unidentified female says, “You broke the fucking window and got glass in my daughter’s face,” and at 3:00 the woman filming states that her children were next to the window that was broken. § 87(2)(b) testified that there were two children and an infant riding in the van. PO Velotti did not recall if he saw how many passengers were riding in the van at the initial stop or if he saw where they were seated. PO Dias maintained that he saw passengers seated in the row directly behind the driver but could not see behind, could not see through the van’s tinted side or rear windows, and did not hear if any passengers were out of sight.

§ 87(2)(g)

In light of these circumstances, it is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B—Force: PO Matthew Dias pointed his gun at § 87(2)(b)

It is undisputed among § 87(2)(b) PO Dias, and PO Velotti that, subsequent to the window breaking, § 87(2)(b) stopped the vehicle at Plainview Avenue. PO Dias admitted that he approached the driver’s side window with his gun drawn and pointed it at § 87(2)(b)

At 6:35 of the incident video, an unidentified male passenger stated that § 87(2)(b) had run a red light. PO Dias and PO Velotti testified that they observed § 87(2)(b) run a red light and nearly cause an accident at the intersection of Mott Avenue and Plainview Avenue. § 87(2)(b) corroborated the officers’ testimony that § 87(2)(b) failed to stop despite the officers’ pursuing his van for either three or four blocks with their lights activated. When § 87(2)(b) eventually stopped, he then accelerated and brushed PO Dias, who stumbled backward. § 87(2)(b) did not stop his vehicle again until PO Dias shattered a rear window.

An officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another's personal safety. *Police Department v. Gliner*, OATH Index No. 955/00 (Sept. 6, 2000) (09. Board Review).

§ 87(2)(g)

it is recommended that **Allegation B** be close as **exonerated**.

Allegation C—Offensive Language: PO Matthew Dias made remarks to § 87(2)(b) based on race.

§ 87(2)(b) alleged that PO Dias said, “Get your black ass out of the van.” PO Velotti and PO Dias testified that PO Dias did not say this to § 87(2)(b) or make any other statement in reference to § 87(2)(b)’s ethnicity, race, or skin color.

§ 87(2)(b) corroborated § 87(2)(b)’s allegation that PO Dias said, “Get your black ass out of the van.” However, when the undersigned investigator first spoke with § 87(2)(b) it was § 87(2)(b) who handed § 87(2)(b) the phone. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D—Force: PO Matthew Dias used pepper spray against § 87(2)(b)

It is undisputed among § 87(2)(b) PO Dias, PO Velotti, and § 87(2)(b) that PO Dias used pepper spray against § 87(2)(b).

§ 87(2)(b) maintained that after he was handcuffed, a male passenger, later identified as § 87(2)(b) walked around the front of the van and asked § 87(2)(b) if he needed anyone to take care of his belongings. PO Dias released his left hand from § 87(2)(b)’s arms, took a canister of pepper spray from his belt, and sprayed § 87(2)(b) in the face from eighteen inches away, continuously, for approximately two seconds. As he did so, PO Dias said, “Get back.”

PO Velotti maintained that, after § 87(2)(b) was placed in hand cuffs, he noticed the van’s passengers exiting the vehicle. PO Velotti ordered them to remain on the sidewalk and they complied, but for one. § 87(2)(b) walked around the rear of the van and approached PO Velotti. § 87(2)(b) said, “This is bullshit. You guys have no right to do this.” PO Velotti ordered him multiple times to return to the sidewalk and told him that he could be arrested if he did not comply. § 87(2)(b) nudged PO Velotti to the side with his shoulder as he walked past him in order to approach PO Dias. PO Velotti pushed § 87(2)(b) away from PO Dias, and § 87(2)(b) again walked toward PO Dias. He stuck out a finger and pointed it at PO Dias’ face, holding it inches away, but never made any physical contact with PO Dias. PO Velotti did not recall if PO Dias warned § 87(2)(b) or issued him any verbal commands. PO Dias took out a canister of pepper spray and immediately sprayed § 87(2)(b) in the face.

PO Dias corroborated PO Velotti’s testimony and added that he told § 87(2)(b) multiple times to “get back” but that § 87(2)(b) refused to retreat. As corroborated by his arrest report, § 87(2)(b) stuck out his index finger and placed his hand within a few inches of PO Dias’ face (11. Board Review). PO Dias pulled out his canister of pepper spray and aimed it at § 87(2)(b). Because § 87(2)(b) again failed to retreat, PO Dias sprayed him in the face with pepper spray, in one quick burst, from a distance of approximately four feet.

The incident video did not show § 87(2)(b) being sprayed or the precipitating events. It did, however, show § 87(2)(b) holding his hand over his eyes, presumably after being sprayed.

According to Patrol Guide procedure 212-95 (10. Board Review) an officer may use pepper spray for self-defense or defense of another from an unlawful use of force, to establish physical control of an individual who is resisting arrest, attempting to flee, or emotionally disturbed, or to control a dangerous animal.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that
Allegation D be closed as **exonerated**.

Allegation E—Discourtesy: PO Matthew Dias spoke rudely to § 87(2)(b)

§ 87(2)(b) claimed that when PO Dias placed him in the rear of the RMP, § 87(2)(b) asked if he was being arrested because he was black. PO Dias allegedly responded, “Don’t put that racist shit on me.”

PO Dias and PO Velotti testified that § 87(2)(b) never indicated that he believed either officer had any racial motivation for their actions and that PO Dias never said, “Don’t put that racist shit on me.”

§ 87(2)(g) [REDACTED] it is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date